

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 12, 2023, a complaint was filed with entry registration number REGAGE23e00023588580 and REGAGE23e00024509028 with the Spanish Agency for Data Protection initially against A.A.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the user of the profile "A.A.A." on Facebook has deceived him by impersonating another person on another social network (Instagram), and as a result, the complainant sent an intimate photo to this user, who subsequently captured it and disseminated it to the complainant's Facebook contacts.

The complainant provides screenshots of a conversation held on Instagram, in which the profile "A.A.A." threatens him with the publication of the intimate photo (sextortion) by creating the blog ***BLOG.1 for this purpose.

On April 17, 2023, the complainant also approached the Agency through the priority channel, stating that, aside from the sextortion suffered, the user of the referred Facebook profile has created a blog with the name and first surname of the complainant, ***BLOG.1 under the title: "****TITLE.1." The complainant states that he has reported this content to Google, without success.

Along with the complaint, he provides a screenshot published on the blog, featuring an image of the complainant partially showing his face and his genitals from the side.

SECOND: On April 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

April 11, 2023, is the date on which the claimed events took place, and as of April 17, 2023, the following evidence has been obtained and recorded in the file:

1. Screenshot of the blog ***BLOG.1 cached from Google.com dated April 12, 2023, where the previously referenced sexual content is noted.
2. Screenshot of the Facebook profile of A.A.A., which does not contain posts related to the complainant.

On April 18, 2023, the Inspection requested GOOGLE IRELAND LIMITED as a provisional measure to remove the blog located at ***BLOG.1. On the same date, it was confirmed that Google had removed the content, although it still appears as a result ***BLOG.1 when searched for the term "****TITLE.1 blogspot." On May 9, 2023, Google Ireland Limited confirmed, in writing to the AEPD, the complete removal of the blogspot in question, also deleting the blogger entry, ***BLOG.1.

On April 18, 2023, the Inspection verified the following points:

1. In the content of the profile of "A.A.A." ***URL.1, there are no photos of the complainant.
2. In the search on google.com for the term "****TITLE.1," neither images nor other videos with the reported sexual content appear.
3. In the search on youtube.com for the term "****TITLE.1," videos with the reported sexual content also do not appear.

On February 14, 2024, the AEPD received a response to the information request made by the inspection to META PLATFORMS IRELAND LIMITED. Their response contains the following information:

That the reported Instagram profile located at URL ***URL.1 is located outside of Europe, and that the

responsible party for this URL is META PLATFORMS INC, a company based in California, and, consequently, under the jurisdiction of the United States of America.

On April 3, 2024, the Inspection again verified that no results appear on Google when searching for the terms "****TITLE.1 blogspot" (***BLOG.1).

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers to

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Each supervisory authority and according to the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Lawfulness of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also concerns other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, using clear and plain language. No part of the declaration which constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before

giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, inter alia, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

The precautionary measures have resulted in the removal of sensitive content; META PLATFORMS IRELAND LIMITED has not provided, in relation to the URL ***URL.1, the identity of the requested data controller, as the administrator of the indicated URL is located in the United States.

Therefore, based on the information provided in the previous paragraphs, it has not been possible to determine the identity of the data controller.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, the Director of the Spanish Agency for the Protection of Data, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the

Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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